



File No.: EXP202208632

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 8, 2022, a complaint was filed with entry registration number REGAGE22e00029231179 and REGAGE22e00031117724 before the Spanish Agency for Data Protection against XFERA MÓVILES, S.A. with NIF A82528548 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant submits a complaint for receiving a commercial call from YOIGO on their mobile line ***PHONE.1, registered in the Robinson List since 2013.

Along with the notification, the following is provided:

- Recording and a screenshot that certifies the receipt of a telephone call on July 7, 2022, at 21:40 hours, from the calling line ***PHONE.2.
- Screenshot and recording of a commercial call received on 07/18/2022 at 17:32 hours, from the calling line ***PHONE.3.
- Copy of a request for erasure, dated 06/30/2022.
- Copy of the response received on 07/01/2022, informing that they have requested the deletion of the indicated number from their advertising databases.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on August 11, 2022, as recorded in the acknowledgment of receipt in the file.

On September 12, 2022, a response was received in this Agency indicating that XFERA is affiliated with ADigital and conducts checks on all its commercial campaigns against the Robinson List. This filtering is also required of all its distributors in telemarketing mode who may use their own databases unrelated to XFERA, and these distributors must provide XFERA with an updated list of the outgoing numbers they will use every month, with the use of uncommunicated numbers not being permitted. XFERA has verified that with the number indicated in this complaint, the result obtained is that there are no results. This means that this number has not been included in any commercial action authorized by XFERA.

THIRD: On September 16, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

As a result of the investigations carried out, the following information has been obtained:

- Through information obtained from the numbering registry on the website of the "Association of Operators for Portability," www.portanet.net, it is verified that, as of the investigation date of this file, the operators of the originating numbers of the calls were:

***PHONE.2

LEAST COST ROUTING TELECOM, S.L.

***PHONE.4 LEAST COST ROUTING TELECOM, S.L.

***PHONE.3 VOXBONE, S.A.

***PHONE.5 LEAST COST ROUTING TELECOM, S.L.

Regarding the number complained about

***PHONE.2

:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEAST COST ROUTING TELECOM, S.L. -> NETVOISS -> GEATEL GROUP E.I.R.L. (Peru)

LEAST COST confirms the emission of the call.

A request was sent by international certified mail to GEATEL GROUP E.I.R.L., requesting the reason for the calls, which was returned with the reason "UNKNOWN."

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In reference to the claimed number

***PHONE.4

:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEAST COST ROUTING TELECOM, S.L. -> STG GROUP (Peru)

LEAST COST confirms the call was made.

TECH TELECOM, in response to a request in EXP202210554 from February 2023, informed that it became the representative of STG GROUP.

A request was sent to TECH which expired, and a reiteration was sent on May 10, 2023.

In reference to the claimed number

***PHONE.3

:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

VOXBONE -> STG COMPANY (Peru)

VOXBONE indicates that the call was not made and alleges possible "SPOOFING."

TELEFÓNICA ESPAÑA confirms the receipt of the call.

A request was sent by international certified mail on January 27, 2023, to STG COMPANY, requesting the reason for the calls, for which no acknowledgment of receipt has been received nor has a response been received.

In reference to the claimed number

***PHONE.5

:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEAST COST ROUTING TELECOM, S.L. -> STG GROUP (Peru) -> POWERCONNECTY S.A.C.

STG GROUP confirms the call was made.

A request was sent by international certified mail on April 27, 2023, to POWERCONNECTY S.A.C., requesting the reason for the calls, for which no acknowledgment of receipt has been received nor has a response been received.

LEGAL GROUNDS

I

Competence
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According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final provision sixth, section 2, of the LGTel

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette.' Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

Through the investigations carried out by this Agency, it has been determined that the calls were not made by XFERA.

It has not been possible to ascertain who the final responsible parties for the calls are, as no response has been received to the requests for information sent to the final holders of the different numbers. The lines indicated in the complaint are assigned to companies located in Peru, so it should be noted that the LGT does not confer the Spanish Agency for Data Protection with competencies over companies located in Peru.

Thus, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

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FIRST: TO FILE the present actions.

SECOND: TO NOTIFY this resolution to XFERA MÓVILES, S.A. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this

resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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